

PROPOSAL & SERVICE AGREEMENT

For: Bright Lights Landscape Lighting

A 90-day pilot to transform 171 five-star reviews into recurring revenue, transitioning into an annual partnership.

Document Date: May 5, 2026 • **Effective Date:** May 4, 2026

Florida Sunbiz Verification (verify both names before signing). Client: **BRIGHT LIGHTS LANDSCAPE LIGHTING LLC**, a Florida limited liability company. Service Provider: **Gladius CRM LLC**, a Florida limited liability company. The exact registered names as they appear on the Florida Division of Corporations record at [sunbiz.org](https://www.sunbiz.org) control. If either name shown above does not match the active Sunbiz record, the verified Sunbiz name controls and supersedes any conflicting reference in this document. Both Parties represent that they are in active status as of the Effective Date.

PREPARED FOR (CLIENT)

BRIGHT LIGHTS LANDSCAPE LIGHTING LLC

d/b/a Bright Lights Landscape Lighting
Cristian M. Encina Vergara, Owner / Registered Agent
Felipe Encina, Operator
Principal Address: 7215 249th St E
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(941) 306-6038
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PREPARED BY (GLADIUS)

Gladius CRM LLC

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AGREEMENT AT A GLANCE

Effective Date	May 4, 2026
Initial Term	Ninety (90) days from Effective Date — the “Pilot Period”
Transition	Auto-converts to a twelve (12) month term on Day 91 unless terminated
Software & Website	Growth Package — regularly \$229/mo, discounted to \$199/mo for the 90-day Pilot
Ad Management Fee	\$200.00 / month during Pilot Period
Client Ad Spend Budget	\$300.00 / month — paid by Client directly to Meta (not to Gladius)
Pilot Total to Gladius	\$1,197.00 over 90 days (\$399/mo × 3)
Day-90 Review	Pricing reviewed and confirmed before transition into annual term

Governing Law

State of Florida

THE PROPOSAL

Why a 90-day pilot, and what we deliver.

Bright Lights Landscape Lighting has built something rare in the southwest Florida market — **171 five-star Google reviews, a 5.0-star average, and nine years of name-recognition** across a 250-mile coastal service area. The next stage of the business is not more reviews. It is converting that goodwill into **recurring revenue**, freeing Cristian from being the system, and giving Felipe the operational tools to scale.

What you get during the 90-day pilot

- **Gladius Lighting workspace.** Your branded operating system — fixture-level inventory, per-fixture warranty timers, bilingual customer flow, route batching across your full Naples-to-Clearwater service area, Storm Response Mode, and the maintenance plan engine that targets your existing book of business. See accompanying Demo Features & Roadmap document for the live workspace built for you.
- **Website management.** We manage your existing website at brightlightslandscapelighting.com — content updates, spam moderation on your reviews section, performance and security maintenance, lead form integration with your Gladius workspace, conversion tracking, and a monthly analytics report.
- **Ad campaign management.** We build, launch, and optimize paid campaigns on Meta (Facebook and Instagram) for your service area. Bilingual ad creative, conversion tracking wired to Gladius, weekly optimization, and a monthly performance report. Ad spend is funded directly by you to Meta.
- **Onboarding & training.** Two onboarding sessions covering the workspace, the maintenance plan campaign launch, and operational handoff. Direct text/email support for Cristian and Felipe throughout the pilot.
- **First maintenance plan campaign.** We help you launch your first bilingual maintenance plan campaign to your existing customer base inside the first 30 days — the move that turns the slow season into your highest-leverage revenue window.

What we expect from Bright Lights

- Active participation from at least one of Cristian or Felipe in onboarding and weekly check-ins during the Pilot Period.
- Read-only access to your existing customer records, prior install data, and any historical service notes.
- Administrative access to your existing Google Business Profile (for review/reputation management), website hosting, and Meta Business Suite (for ad management) — or assistance creating any of these where they do not exist.
- Direct funding of ad spend on Meta via your business credit card (we never collect or hold ad spend).
- Good-faith collaboration on the Day-90 Review.

Our mutual commitment for the 90-day pilot. This pilot only works if both sides show up. **Gladius commits to:** daily monitoring of your campaigns and workspace, weekly optimization, monthly reporting against the Day-90 benchmarks (next page), and transparent communication if something is not tracking. **Bright Lights commits to:** responding within 2 business days to operational requests, attending scheduled check-ins, and providing the customer information and account access needed to do this work. Either Party concerned about pilot trajectory should raise it immediately rather than waiting for the Day-90 Review.

INVESTMENT

What it costs and where the money goes.

The 90-day pilot has three distinct money flows. Two are fees paid to Gladius. One is your ad budget paid directly by you to Meta. We never co-mingle the two.

Item	Monthly	90-Day Total	Paid To
Growth Package — software + website management (<i>reg. \$229/mo, discounted</i>)	\$199.00	\$597.00	Gladius CRM LLC
Ad campaign management fee	\$200.00	\$600.00	Gladius CRM LLC
Client ad spend budget (Meta — Facebook + Instagram)	\$300.00	\$900.00	Meta direct
Total to Gladius (Pilot Period)	\$399.00	\$1,197.00	
Total Pilot Cost (incl. ad spend)	\$699.00	\$2,097.00	

Important — Ad Spend Clarification. The **\$300/month ad spend budget is your money**, paid directly by Bright Lights to Meta on your business credit card on file with Meta. Gladius never collects, holds, or invoices ad spend. We manage the campaigns on your Meta Business Suite; Meta invoices you directly. You retain full ownership of your Meta accounts at all times. If our agreement ends, you keep every dollar of ad history, audience data, custom audiences, pixel data, and campaign assets.

Day-90 review & transition into annual term

On or before the 85th day of the Pilot Period, Gladius will conduct a written Day-90 Review covering: (a) workspace adoption and value delivered; (b) results of the first maintenance plan campaign; (c) ad campaign performance; (d) recommended pricing for the 12-month term beginning Day 91; and (e) any scope adjustments. Pilot pricing (\$199 + \$200 = \$399/mo to Gladius) is guaranteed only through the 90-day Pilot Period. Post-pilot pricing will reflect the actual scope of services going forward and will be documented in a written addendum signed by both parties before Day 91. If Bright Lights does not wish to proceed at the reviewed pricing, either party may terminate without penalty.

Why this pricing for the pilot? \$399/month to Gladius is materially below our standard Professional tier. We have priced the pilot this way because Bright Lights is the first lighting-vertical design partner inside the Gladius ecosystem. In exchange, Bright Lights agrees to (a) a written case study after Day 90 if results meet agreed-upon benchmarks, (b) a recorded testimonial from Cristian and/or Felipe, and (c) the option to be referenced by name as our Florida lighting design partner in marketing materials. Standard pricing applies post-pilot.

Success benchmarks for the Day-90 Review. These define a successful pilot and inform the post-pilot pricing in Section 4.3 — they are targets, not performance guarantees: **(1)** first maintenance plan campaign launched within 30 days of Effective Date; **(2)** first-response time of 4 business hours or less on Gladius-managed leads; **(3)** cost-per-qualified-lead trending toward \$45–\$95 by end of pilot; **(4)** Cristian and/or Felipe logged into Workspace 3+ days per week by Day 60; **(5)** review velocity matches or exceeds your trailing-90-day Google Business Profile pace; **(6)** measurable improvement in client retention over the Pilot Period.

THE AGREEMENT

Service Agreement

This Service Agreement (the "Agreement") is entered into and effective as of **May 4, 2026** (the "Effective Date") by and between **Gladius CRM LLC**, a Florida limited liability company ("Gladius," "we," "us," or "our"), and **BRIGHT LIGHTS LANDSCAPE LIGHTING LLC**, a Florida limited liability company doing business as Bright Lights Landscape Lighting, with a principal place of business at 7215 249th St E, Myakka City, FL 34251 ("Client," "Bright Lights," or "you"). Gladius and Client are each a "Party" and together the "Parties."

1. Definitions

"Pilot Period" means the ninety (90) calendar day period beginning on the Effective Date.

"Annual Term" means the twelve (12) month term that begins automatically on the day immediately following the last day of the Pilot Period ("Day 91"), unless either Party has terminated this Agreement under Section 9.

"Services" means the software, website management, and ad campaign management services described in Section 2.

"Workspace" means the Client-branded Gladius Lighting workspace provisioned for Bright Lights.

"Ad Spend" means the budget paid by Client directly to Meta Platforms, Inc. (operating Facebook and Instagram) for the placement of advertisements. Ad Spend is not a fee paid to Gladius.

"Client Data" means all data, content, customer records, fixture information, photographs, and other materials provided by or on behalf of Client, or generated through Client's use of the Services.

"Day-90 Review" means the written review conducted under Section 4.3 prior to the start of the Annual Term.

2. Services

2.1 Software (Gladius Lighting Workspace). Gladius will provision and host a Client-branded Workspace at a unique URL within the gladiusturf.com domain. The Workspace includes fixture-level customer records, per-fixture warranty tracking, bilingual (English/Spanish) customer communications, route batching, the maintenance plan engine, Storm Response Mode, the reputation/reviews module, and the dashboard, as further described in the accompanying Demo Features & Roadmap document. Gladius will provide reasonable platform availability and apply security updates on an ongoing basis.

2.2 Website Management. Gladius will manage Client's existing website at brightlightslandscapelighting.com, including (a) routine content updates as requested by Client (up to two (2) update batches per month, with each batch consisting of up to ten (10) discrete changes); (b) moderation of the public-facing reviews section to remove spam, bot, or off-topic submissions; (c) security and performance maintenance; (d) integration of website lead forms with the Workspace; (e) installation of conversion tracking and analytics; and (f) a monthly analytics summary. Major redesigns, new feature builds, or third-party integrations beyond those described are out of scope and will be quoted separately.

2.3 Ad Campaign Management. Gladius will build, launch, and manage paid advertising campaigns on Meta (Facebook and Instagram) within Client's geographic service area. Services include campaign setup, bilingual ad creative production, audience targeting (including lookalike audiences and retargeting), Meta Pixel and conversion tracking integration with the Workspace, weekly optimization across prospecting and retargeting allocations, and a monthly performance report. Google Ads, Google Local Service Ads, and other paid platforms are out of scope under this Agreement and may be added by written amendment.

2.4 Ad Spend Is Client's Responsibility. Ad Spend is funded directly by Client to Meta via Client's payment method on file with Meta. Gladius does not collect, invoice for, hold, or remit Ad Spend on Client's behalf. The agreed Ad Spend budget for

the Pilot Period is three hundred dollars (\$300.00) per month, allocated by Gladius across prospecting and retargeting campaigns within Meta in consultation with Client. Ad Spend is in addition to, and separate from, the Ad Management Fee in Section 5.

2.5 Ownership of Ad Accounts. Client owns its Meta Business Suite, Meta Ad Account, Facebook Page, Instagram Business Account, Google Business Profile, and any other advertising or analytics accounts at all times, including all account history, audience data, custom audiences, pixel data, conversion data, and creative assets. Gladius operates these accounts under Client's authorization solely as a partner or agency role, not as owner. Upon termination, Gladius will remove its access within five (5) business days and the accounts remain solely with Client.

3. Onboarding and Client Cooperation

Within five (5) business days after the Effective Date, Client will provide Gladius with: (a) administrative access to the website hosting account and content management system; (b) administrative or partner-level access to Client's Meta Business Suite, Meta Ad Account, Facebook Page, and Instagram Business Account (or assistance creating any of these where they do not exist); (c) manager-level access to Client's Google Business Profile for review and reputation management (no Google Ads access is required under this Agreement); (d) any existing customer list, install records, and historical service notes Client wishes to import; and (e) brand assets, photographs, and prior advertising creative for use in marketing. Gladius's ability to deliver the Services is contingent on Client providing the access and cooperation described in this Section 3 in a timely manner.

4. Term, Pilot Period, and Annual Transition

4.1 Pilot Period. The initial term of this Agreement is the ninety (90) day Pilot Period beginning on the Effective Date. During the Pilot Period, fees are fixed as set forth in Section 5.1.

4.2 Automatic Transition to Annual Term. Unless this Agreement is terminated under Section 9, on the day immediately following the last day of the Pilot Period ("Day 91") this Agreement will automatically continue as a twelve (12) month Annual Term at the post-pilot pricing established under Section 4.3. The Annual Term will then renew for successive twelve (12) month periods unless either Party gives written notice of non-renewal at least thirty (30) days before the end of the then-current Annual Term.

4.3 Day-90 Review and Pricing Confirmation. On or before the eighty-fifth (85th) day of the Pilot Period, the Parties will jointly conduct a Day-90 Review covering: (a) Client's adoption of and value derived from the Workspace; (b) the results of the first maintenance plan campaign; (c) ad campaign performance; (d) any scope adjustments either Party wishes to propose; and (e) the post-pilot pricing for the Annual Term. The post-pilot pricing will reflect the actual scope of Services going forward and will be memorialized in a written pricing addendum signed by both Parties before Day 91 (the "Pricing Addendum"). If the Parties do not sign the Pricing Addendum before Day 91, either Party may terminate this Agreement without penalty by written notice given on or before Day 95, and Client will owe no fees beyond the Pilot Period.

4.4 Pilot Pricing Not a Future Commitment. Client acknowledges that the pilot pricing in Section 5.1 is offered as introductory pricing for the Pilot Period only and does not create any commitment by Gladius to maintain that pricing into the Annual Term or any renewal. Post-pilot pricing will be determined under Section 4.3.

5. Fees and Payment

5.1 Pilot Period Fees (to Gladius). During the Pilot Period, Client will pay Gladius the following fees. The software + website management fee reflects Gladius's **Growth Package**, which is regularly offered at two hundred twenty-nine dollars (\$229.00) per month and is discounted to one hundred ninety-nine dollars (\$199.00) per month for the 90-day Pilot Period only:

Growth Package — software + website management	\$199.00 / month
(Growth Package regular price: \$229.00 / month)	\$30.00 / month discount
Ad campaign management	\$200.00 / month
Total Pilot fees to Gladius	\$399.00 / month
Pilot Period total to Gladius (3 months)	\$1,197.00

5.2 Ad Spend. Ad Spend of three hundred dollars (\$300.00) per month is paid by Client directly to Meta and is not invoiced by Gladius. Client is solely responsible for the Ad Spend amount, payment method, and any platform fees, taxes, or chargebacks associated with it.

5.3 Invoicing and Payment. Gladius will invoice Client monthly in advance. Each monthly invoice for the \$399.00 Pilot fee is due on or before the first day of the service month, beginning on the Effective Date. Client will provide a credit card or ACH method on file at the time of execution; the first invoice may be charged to that method on the Effective Date. Late payments more than seven (7) days past due may incur a late fee of one and one-half percent (1.5%) per month or the maximum allowed by applicable law, whichever is less. Unpaid invoices more than fifteen (15) days past due are grounds for suspension of Services after written notice.

5.4 Taxes. Fees are exclusive of any applicable sales, use, or similar taxes. Client is responsible for any such taxes other than taxes based on Gladius's net income.

5.5 Annual Term Fees. Annual Term fees are set under the Pricing Addendum signed under Section 4.3. Absent a signed Pricing Addendum, the Pilot pricing in Section 5.1 does not carry forward.

6. Intellectual Property and Data Ownership

6.1 Gladius IP. Gladius owns all right, title, and interest in and to the Gladius platform, software, the Workspace template and underlying code, the Gladius Lighting feature set, and any improvements, modifications, derivative works, or know-how developed by Gladius (collectively, the "Gladius IP"). Nothing in this Agreement transfers ownership of the Gladius IP to Client. Gladius grants Client a non-exclusive, non-transferable, revocable license to use the Workspace solely for Client's internal business operations during the term of this Agreement.

6.2 Client Data and Content. Client retains all right, title, and interest in and to Client Data, including customer lists, fixture inventory, photographs, brand assets, the brightlightslandscapelighting.com website content, and any creative produced by Gladius for use specifically in Client's advertising campaigns (the "Client Materials"). Gladius hereby assigns to Client all rights it may have in the Client Materials produced as work made for hire under this Agreement, subject only to Gladius's retained right to use anonymized, aggregated, or de-identified data for product improvement and benchmarking.

6.3 Data Export on Termination. On termination of this Agreement for any reason, Gladius will, at no charge and within ten (10) business days of Client's written request, provide Client with a complete export of Client Data in a commercially reasonable format (CSV or equivalent). Gladius may retain Client Data thereafter only as required for legitimate backup, legal, or compliance purposes.

6.4 Marketing Use of Client's Name. In consideration of the Pilot Period pricing, Client grants Gladius a limited, non-exclusive license during the term of this Agreement and for twelve (12) months thereafter to (a) reference Bright Lights Landscape Lighting by name as a Florida lighting design partner; (b) display the Bright Lights logo on Gladius marketing materials and the Gladius website; and (c) use approved quotes and metrics from the Day-90 Review in case studies. Gladius will provide Client a reasonable opportunity to review and approve any specific testimonial quote or case study before publication, with such approval not unreasonably withheld.

6.5 Data Security. Gladius will maintain commercially reasonable administrative, physical, and technical safeguards designed to protect the security, confidentiality, and integrity of Client Data, including (a) encryption of Client Data in transit using TLS 1.2 or higher and at rest using AES-256 or equivalent; (b) role-based access controls limiting Client Data access to Gladius personnel with a need to know; (c) periodic backups of the Workspace; (d) separation of Client Data from data of other Gladius customers; and (e) standard industry practices for credential management and secrets handling.

6.6 Breach Notification. Gladius will notify Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of any unauthorized access, acquisition, disclosure, or loss of Client Data (a "Security Incident"). The notification will describe, to the extent then known, the nature and scope of the Security Incident, the Client Data affected, and the steps Gladius is taking to investigate and remediate. Gladius will cooperate reasonably with Client in any subsequent investigation or notification obligation Client may have under applicable law.

7. Confidentiality

Each Party may receive information from the other that is confidential, including pricing, customer lists, business plans, and the Gladius IP ("Confidential Information"). Each Party will (a) use the other's Confidential Information solely to perform under this Agreement; (b) protect it with at least the same degree of care it uses for its own confidential information of similar importance, and in no event less than reasonable care; and (c) not disclose it to any third party except to its employees, contractors, and advisors who have a need to know and who are bound by confidentiality obligations at least as protective as those in this Agreement. This Section survives termination for two (2) years.

8. Service Levels and Warranties

8.1 Mutual Authority. Each Party warrants that it has the full power and authority to enter into and perform under this Agreement.

8.2 Services Warranty. Gladius warrants that the Services will be performed in a professional and workmanlike manner consistent with general industry standards. Client's exclusive remedy for breach of this warranty is for Gladius to re-perform the deficient Services or, at Gladius's option, refund the fees paid for the deficient portion of the Services.

8.3 Disclaimer. EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, THE SERVICES AND THE WORKSPACE ARE PROVIDED "AS IS" AND GLADIUS DISCLAIMS ALL OTHER WARRANTIES, EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. GLADIUS DOES NOT WARRANT ANY SPECIFIC ADVERTISING OUTCOME, NUMBER OF LEADS, MAINTENANCE PLAN CONVERSION RATE, OR REVENUE RESULT.

9. Termination

9.1 Termination for Convenience after Pilot Period. Either Party may terminate this Agreement during the Annual Term for convenience upon thirty (30) days written notice to the other Party. Fees paid for the month in which termination is effective are non-refundable. Client may not terminate this Agreement for convenience during the Pilot Period; however, the Pilot Period itself terminates automatically on Day 90 if no Pricing Addendum is signed under Section 4.3.

9.2 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party (a) materially breaches this Agreement and fails to cure that breach within fifteen (15) days after receiving written notice of it; (b) becomes insolvent, makes an assignment for the benefit of creditors, or has a receiver appointed; or (c) ceases to conduct business in the ordinary course.

9.3 Effect of Termination. On termination, (a) all licenses granted under this Agreement end; (b) Client will pay Gladius any fees accrued through the effective date of termination; (c) Gladius will provide the Client Data export described in Section 6.3; (d) Gladius will remove its access to Client's ad and website accounts within five (5) business days; and (e) the provisions identified in Section 14 (Survival) remain in effect after termination.

10. Limitation of Liability

10.1 Cap. EXCEPT FOR (a) A PARTY'S BREACH OF SECTION 7 (CONFIDENTIALITY); (b) CLIENT'S PAYMENT OBLIGATIONS; (c) EITHER PARTY'S INFRINGEMENT OF THE OTHER'S INTELLECTUAL PROPERTY RIGHTS; (d) A PARTY'S INDEMNIFICATION OBLIGATIONS UNDER SECTION 17; OR (e) FRAUD, GROSS NEGLIGENCE, OR WILLFUL MISCONDUCT, EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT WILL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO GLADIUS IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

10.2 Excluded Damages. NEITHER PARTY WILL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10.3 Ad Platform Disclaimers. Gladius is not responsible for changes in ad platform policies, algorithms, account suspensions imposed by third-party platforms, or any disputes between Client and any ad platform. Gladius will use commercially reasonable efforts to assist Client in addressing such issues.

11. Governing Law and Dispute Resolution

11.1 Governing Law. This Agreement is governed by the laws of the State of Florida, without regard to its conflict-of-laws principles. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in Sarasota County, Florida, for any matter not subject to mediation under Section 11.2.

11.2 Informal Resolution; Mediation. Before initiating any legal action, the Parties will attempt to resolve any dispute through good-faith discussion between the Parties' principals for at least thirty (30) days. If unresolved, the Parties will then attempt mediation in Sarasota County, Florida with a mutually agreed mediator before initiating formal legal proceedings, except that a Party may seek injunctive relief at any time to protect its intellectual property or Confidential Information.

12. General Provisions

12.1 Independent Contractors. The Parties are independent contractors. Nothing in this Agreement creates an employer-employee, partnership, joint venture, agency, or fiduciary relationship.

12.2 Assignment. Neither Party may assign this Agreement without the other's prior written consent, except that either Party may assign this Agreement without consent to a successor in connection with a merger, reorganization, or sale of substantially

all of its assets, provided the successor agrees in writing to be bound by this Agreement.

12.3 Notices. Notices under this Agreement must be in writing and sent to the addresses on the cover page (or such other address as a Party designates by notice). Email is sufficient for routine operational notices; notices of breach, termination, or any matter requiring formal action must additionally be sent by certified mail or a nationally recognized overnight courier with tracking.

12.4 Force Majeure. Neither Party is liable for delays or failures in performance caused by events beyond its reasonable control, including hurricanes, floods, fires, pandemics, internet or platform outages, governmental action, or labor disputes, provided the affected Party uses reasonable efforts to mitigate.

12.5 Entire Agreement; Order of Precedence. This Agreement, together with any signed Pricing Addendum, the accompanying Demo Features & Roadmap document, and any signed statements of work, is the entire agreement between the Parties and supersedes all prior or contemporaneous communications, proposals, and agreements regarding its subject matter. In the event of a conflict, the order of precedence is: (1) any signed Pricing Addendum or amendment specifically referencing this Agreement, (2) this Agreement, (3) the Proposal sections preceding this Agreement, and (4) the Demo Features & Roadmap document.

12.6 Amendments. This Agreement may be amended only by a written instrument signed by both Parties.

12.7 Severability and Waiver. If any provision of this Agreement is held unenforceable, the remaining provisions remain in full force. No waiver is effective unless in writing and signed by the waiving Party.

12.8 Counterparts; Electronic Signatures. This Agreement may be executed in counterparts, each of which is an original. Electronic signatures (including DocuSign, Adobe Sign, or signed-and-scanned PDFs) have the same legal effect as original ink signatures.

12.9 Independent Legal Advice. Each Party acknowledges it has had the opportunity to consult independent legal counsel before signing this Agreement.

13. Insurance

13.1 Client Insurance. Client represents and warrants that, throughout the term of this Agreement, it will maintain in full force and effect (a) Commercial General Liability insurance with limits of not less than \$1,000,000 per occurrence and \$2,000,000 in the aggregate, covering bodily injury, property damage, and completed operations, given the nature of Client's outdoor electrical-fixture installation work; (b) Workers' Compensation insurance as required by Florida law for any employees; and (c) Commercial Auto insurance for any vehicle used in Client's business, with limits required by Florida law. Client will provide a Certificate of Insurance to Gladius upon written request.

13.2 Gladius Insurance. Gladius represents and warrants that, throughout the term of this Agreement, it will maintain Errors & Omissions / Professional Liability insurance with limits of not less than \$1,000,000 per claim and Cyber Liability insurance appropriate to the scale of Services delivered hereunder. Gladius will provide a Certificate of Insurance to Client upon written request.

13.3 Notice of Lapse. Each Party will promptly notify the other in writing if its required insurance lapses, is canceled, or is materially reduced. A lapse not cured within thirty (30) days is a material breach for purposes of Section 9.2.

14. Survival

The following provisions survive termination or expiration of this Agreement: Section 5 (with respect to fees accrued before termination), Section 6 (Intellectual Property and Data Ownership, including Sections 6.5 and 6.6 on Data Security and Breach Notification), Section 7 (Confidentiality), Section 8.3 (Disclaimer), Section 9.3 (Effect of Termination), Section 10 (Limitation of Liability), Section 11 (Governing Law and Dispute Resolution), Section 12 (General Provisions), Section 17 (Indemnification, with respect to claims arising during the term), Section 18 (Non-Solicitation of Personnel) for its stated 12-month tail, Section 19 (Publicity and Non-Disparagement) for its stated 12-month tail, Section 21 (Mutual Representations and Warranties), and any other provision that by its nature is intended to survive.

15. Notice Addresses and Authorized Representatives

15.1 Authorized Representatives. The Parties designate the following as their authorized representatives for day-to-day operational matters under this Agreement. A change of representative does not amend this Agreement and may be made by written notice (email permitted).

For Client

For Gladius

Cristian M. Encina Vergara, Owner
Felipe Encina, Operator
(941) 306-6038
cristian.brightlights@gmail.com
Service address: 7215 249th St E,
Myakka City, FL 34251

Ricardo Gamon, Co-Founder
Joshua Yorke, Co-Founder
(786) 774-6087
Admin@gladiuscrm.com
Service address:
635 Florenz Circle,
Saint Petersburg, FL 33703

15.2 Address for Formal Notices. Formal notices required under Section 12.3 must be sent to the principal addresses on the cover page. Either Party may change its address for formal notices by giving the other Party fifteen (15) days prior written notice of the new address.

16. Acceptable Use of the Workspace

Client agrees that, in connection with its use of the Workspace, Client will not (a) resell, rent, sublicense, or otherwise make the Workspace available to any third party that is not a Client employee, contractor, or authorized representative; (b) attempt to reverse-engineer, decompile, disassemble, or otherwise derive the source code or underlying structure of the Workspace, except as expressly permitted by applicable law that cannot be waived by contract; (c) share login credentials with any person who is not an authorized Client user, or fail to keep credentials reasonably secure; (d) use the Workspace to send unsolicited commercial messages in violation of the CAN-SPAM Act, Florida law, or any other applicable anti-spam law; (e) upload to the Workspace any content that is unlawful, infringes a third party's rights, or contains malicious code; (f) use automated means (scrapers, bots, or crawlers) to extract data from the Workspace at scale beyond Client's normal operational use; or (g) use the Workspace to compete with Gladius by building, training, or developing a product that is substantially similar to the Gladius platform. Gladius may suspend Workspace access on notice if Client materially violates this Section, with reasonable opportunity to cure where the violation is curable.

17. Indemnification

17.1 By Gladius. Gladius will defend, indemnify, and hold harmless Client and its officers, employees, and agents from and against any third-party claim, suit, or action alleging that the Gladius platform or the Workspace, as provided by Gladius and used in accordance with this Agreement, infringes a United States patent, copyright, trademark, or trade secret of a third party, and will pay any final award of damages or settlement amounts agreed to by Gladius in connection with such claim.

17.2 By Client. Client will defend, indemnify, and hold harmless Gladius and its officers, employees, and agents from and against any third-party claim, suit, or action arising out of (a) Client Data, including any claim that Client Data infringes a third party's rights or violates applicable law; (b) Client's electrical or installation work, including any property damage, bodily injury, or product liability claim arising from a fixture installed or serviced by Client; (c) Client's breach of Section 16 (Acceptable Use); or (d) Client's violation of CAN-SPAM, TCPA, or Florida consumer-protection laws in connection with marketing communications Client directs Gladius to send.

17.3 Procedure. The indemnified Party will (a) promptly notify the indemnifying Party in writing of the claim; (b) give the indemnifying Party sole control of the defense and any settlement, provided the settlement does not impose any non-monetary obligation on the indemnified Party without its consent; and (c) cooperate reasonably at the indemnifying Party's expense. Failure to provide prompt notice does not relieve the indemnifying Party except to the extent it is materially prejudiced.

17.4 Exclusive Remedy. The remedies in this Section 17 are the indemnified Party's exclusive remedy and the indemnifying Party's exclusive liability for the claims described herein.

18. Non-Solicitation of Personnel

During the term of this Agreement and for twelve (12) months after termination, neither Party will, directly or indirectly, solicit for employment or engagement, or hire or engage as an independent contractor, any employee or contractor of the other Party who has been substantively involved in the performance of this Agreement, without the other Party's prior written consent. This Section does not prohibit (a) general advertising, public job postings, or recruiting activities not specifically directed at the other Party's personnel, or (b) hiring an individual who responds to such general activities without targeted outreach. The Parties agree that the harm caused by a breach of this Section is difficult to quantify, and that as liquidated damages and not as a penalty, the breaching Party will pay the non-breaching Party an amount equal to fifty percent (50%) of the solicited person's annual base compensation, payable within thirty (30) days of the breach.

19. Publicity and Non-Disparagement

19.1 Publicity. Beyond the marketing rights granted in Section 6.4, neither Party will issue press releases or other public statements naming the other Party in connection with this Agreement without the other Party's prior written consent, which may be given by email.

19.2 Non-Disparagement. During the term of this Agreement and for twelve (12) months after termination, neither Party will make any public statement, in any medium (including social media, online reviews, podcasts, or industry publications), that disparages the other Party, its services, its principals, or its employees. This Section does not restrict (a) truthful statements compelled by legal process or required to be made to a regulator; (b) good-faith communications between the Parties about the Services; or (c) honest customer feedback provided privately to the other Party.

20. Subcontractors

Gladius may use subcontractors to deliver portions of the Services (including ad creative production, software hosting, payment processing, and email delivery) provided that (a) Gladius remains primarily responsible to Client for the performance of any obligation it subcontracts, and (b) any subcontractor handling Client Data is bound by confidentiality and data-protection obligations at least as protective as those in this Agreement. Gladius will provide a current list of material subcontractors on Client's written request.

21. Mutual Representations and Warranties

Each Party represents and warrants to the other that, as of the Effective Date: (a) it is a duly organized and validly existing entity in good standing under the laws of its state of formation; (b) the individual signing this Agreement on its behalf has full authority to do so and to bind the Party to this Agreement; (c) execution and performance of this Agreement does not and will not violate any other agreement to which the Party is bound, any applicable law, or any judgment or order binding on the Party; and (d) it is not, and none of its principals are, listed on any U.S. government list of sanctioned persons (including the OFAC Specially Designated Nationals list) or otherwise prohibited from doing business under U.S. law.

Exhibit A — Service Level Targets

This Exhibit A is incorporated into and forms part of the Agreement. Service Level Targets define the operational standards Gladius will use commercially reasonable efforts to meet during the Pilot Period and thereafter. Failure to meet a target in any single month is not, by itself, a breach of this Agreement; sustained failure to meet targets across multiple measurement periods may be addressed under Section 8.2 (Services Warranty).

Service Element	Target	Measurement
Workspace platform availability	99.5% uptime per month	Excludes scheduled maintenance windows announced 48 hours in advance
Critical incident response	Within 4 business hours	Workspace inaccessible, lead form down, ad campaign disabled by platform, or paid spend wasted on a misconfigured campaign
Standard support response	Within 1 business day	All other support requests by email or text from authorized representatives
Routine content updates	Within 5 business days of request	Up to 2 batches per month, each up to 10 discrete changes (per Section 2.2)
Spam moderation on reviews section	Within 24 hours of detection	Detection via daily automated scan plus weekly manual review
Monthly performance report delivery	By the 5th business day of the following month	Includes ad CPL, CAC, channel attribution, conversion funnel, and lead source per Section 2.3
Lead routing into Workspace	Within 2 minutes of submission	Measured from website form submission timestamp to Workspace lead record creation
Data export on termination	Within 10 business days of written request	Per Section 6.3; CSV or equivalent commercially reasonable format

Service Level Targets are operational standards, not financial guarantees. They do not modify the disclaimers in Section 8.3 or the limitations in Section 10.

Exhibit B — Day-90 Review

At Day 90, the Parties will jointly review the results of the Pilot Period and discuss marketing adjustments and pricing for Gladius's services and Client's website management going forward. Once the Pilot Period demonstrates measurable success and improved client retention, the Parties will document the agreed Annual Term scope and pricing in a written addendum signed under Section 4.3. Either Party may decline to proceed under Section 4.3 without penalty.

EXECUTION

Signatures

By signing below, each Party acknowledges it has read, understood, and agrees to be bound by all terms of this Proposal & Service Agreement, including the 90-day Pilot Period, the automatic transition into a 12-month Annual Term subject to a signed Pricing Addendum, the fee structure, and the Ad Spend clarification.

How to sign and return. Gladius has already signed and dated this Agreement on its side. All you need to do is fill the **amber-highlighted fields on your side**. Open this PDF in Adobe Acrobat Reader, Apple Preview, or any modern PDF reader. Click the highlighted fields — your initials at every page footer (left side), the acknowledgment and payment-method checkboxes, and your signature, name, title, and date below — and type your information directly into each field. Save the completed PDF, then email it back to **Admin@gladiuscrm.com**. Per Section 12.8, electronic signatures have the same legal effect as ink signatures.

Notice. Gladius is not a law firm and the contents of this Agreement are not legal advice. Bright Lights is encouraged to have this Agreement reviewed by an attorney of its choosing before signing. Confirm that **BRIGHT LIGHTS LANDSCAPE LIGHTING LLC** matches the registered name on the Florida Division of Corporations record (sunbiz.org) before signing.

Acknowledgments (please check each box)

I understand this is a 90-day Pilot Period that automatically transitions to a 12-month Annual Term on Day 91 unless terminated.

I understand pilot pricing of \$399/month to Gladius is for the 90-day Pilot Period only, and post-pilot pricing will be set in a written Pricing Addendum signed before Day 91.

I understand the \$300/month ad spend budget is paid by me directly to Meta (not to Gladius), and Gladius does not collect or hold ad spend.

I represent that my company maintains the insurance coverage required of it under Section 13 and will notify the other Party of any lapse.

I acknowledge the Acceptable Use restrictions in Section 16, the Non-Solicitation obligations in Section 18, and the mutual representations in Section 21.

I authorize Gladius to reference Bright Lights Landscape Lighting as a Florida lighting design partner in marketing materials, subject to the approval rights in Section 6.4.

Payment Method on File

Indicate the payment method to be charged for the monthly \$399 Pilot fee. Ad Spend (\$300/month) is paid separately by Client directly to Meta.

Credit Card (Gladius will send a secure Stripe link)

ACH / Bank Transfer (Gladius will provide instructions)

BRIGHT LIGHTS LANDSCAPE LIGHTING
LLC

AUTHORIZED SIGNATURE

PRINTED NAME

TITLE

DATE SIGNED

GLADIUS CRM LLC ✓ pre-signed

AUTHORIZED SIGNATURE

Ricardo Gamon

PRINTED NAME

Ricardo Gamon

TITLE

CEO

DATE SIGNED

May 4, 2026